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|    |                                                     | <p>addressed to the sound discretion of the trial court.” (<i>Oliveros v. County of Los Angeles</i> (2004) 120 Cal. App. 4th 1389, 1395.)</p> <p>This motion is made on the eve of trial after the case has been pending nearly two years. Defendants argue that good cause exists to continue the trial because if the motion to be relieved as counsel is granted, “defendants will require time to find other counsel to represent them.” (Motion at 3:10-11) There is no other basis for the motion such as the unavailability of a witness or party or an excused inability to obtain essential evidence.</p> <p>The Court notes that the motion to be relieved is based on Mr. McGrath’s assertion that he has not been paid for his services. He states that the defendants’ failure to pay goes back to before the October 2022 mediation. As the plaintiff points out in her opposition, Mr. McGrath has not been diligent in bringing the subject motion. Mr. McGrath states in his declaration that he has been busy these past two years working on a new business he is attempting to start. However, this is not a legitimate basis for delaying the filing of the subject motions.</p> <p>Accordingly, the motion to continue trial is <b>DENIED</b>. The Mandatory Settlement Conference will remain as scheduled for October 6, 2023 at 8:30 a.m. The parties are ordered to comply with Rule 3.1380 in advance of the MSC.</p> <p>Additionally, the Court notes that on 4/19/23, Plaintiff filed an amendment to the complaint naming Phat Phan as DOE 1. There is no POS, default or answer on file. The Court sets an Order to Show Cause re Failure to Serve or Dismiss Defendant Phat Phan for October 13, 2023 at 9:00 a.m. in this Department.</p> <p><i>Jon McGrath is ordered to give notice of these rulings.</i></p> |
| 7. | Sommers v. Walker<br>23-1309183                     | (Off calendar)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 8. | Fidelity Tax Relief LLC v. AdBoom LLC<br>20-1149130 | <p>Defendant Nick Kohlschreiber’s (“Kohlschreiber”) Demurrer to plaintiff Fidelity Tax Relief LLC’s (“Plaintiff”) First Amended Complaint (“FAC”) is <b>OVERRULED</b>.</p> <p>A demurrer challenges the defects appearing on the face of the pleading or from other matters properly subject to judicial notice. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) The issue is the sufficiency of the pleading, not the truth of the facts alleged. Thus, no matter how unlikely or improbable, the allegations made must be accepted as true for the purpose of ruling on the demurrer. (<i>Del E. Webb Corporation v. Structural Materials Co.</i> (1981) 123</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |